Chapter 5 a)
Residential Development

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Residential Development

The aim of this chapter is to provide specific guidelines relating to residential development in Land Use Zone R1.

Objectives

These objectives have been prepared for the residential development of land within the townships of Narromine, Trangie and Tomingley:

- **To conserve the local character and amenity of the Narromine Shire, and to protect and encourage a rural lifestyle, based on community values.**
- **To ensure that new development does not negatively impact on the amenity, privacy and views of adjoining development**
- **To reduce the potential for land use conflict**
- **To ensure that development is consistent with the character of the streetscape.**

Building Siting and Design

Setbacks

Intent

To set back buildings and garages/carports from the street to provide adequate space for landscape or open space, visual and acoustic privacy and vehicle parking, while assisting in establishing an attractive streetscape.

Performance Criteria

The setbacks of buildings contributes to existing or proposed streetscape character, assists in the integration of new development into the public streetscape, makes efficient use of the site, and provides amenity for residents. Further, it should be demonstrated that acceptable traffic noise reduction measures have been incorporated into the development.

Acceptable Solutions

Note: The Acceptable Solutions illustrate ONE WAY of meeting the associated performance criteria. Other methods are able to be proposed and are assessed on their ability to achieve the performance criteria.

Frontage		New Development	Infill Development
Front	Main Road	9 metres	The same distance as on or the other adjoining buildings, provided the difference between the setbacks is less than or equal to 2m ELSE the average of the setbacks of the adjoining buildings.
	Feeder Road	7.5 metres	
Side	One Storey	NCC Standard	NCC Standard
	Two Storey	3 metres	3 metres
Rear	One Storey	4 metres	4 metres
	Two Storey	7 metres	7 metres
Corner Allotment	Front	As per 'Front' above	The same distance as on or the other adjoining buildings, provided the difference between the setbacks is less than or equal to 2m ELSE the average of the setbacks of the adjoining buildings.
	Side	5 metres	

Building Heights

Intent

To enable flexibility in building siting while protecting reasonable neighbour amenity expectations, maintaining appropriate residential character and visual bulk, providing adequate daylight to dwellings and sunlight to private open space.

Performance Criteria

- **Building heights are to be similar to those in the public streetscape, with higher buildings sited so as to minimise impacts on neighbours and the streetscape.**

- **Building walls are limited in length and height to minimise the impact on neighbours in terms of privacy and overshadowing. Direct overlooking of main internal living areas and private open spaces of other dwellings is minimised or mitigated.**

Acceptable Solutions

Note: The Acceptable Solutions illustrate ONE WAY of meeting the associated performance criteria. Other methods are able to be proposed and are assessed on their ability to achieve the performance criteria.

- **No dwelling, dual occupancy or townhouse is to be erected with a height of more than two storeys or 9 metres above natural ground level, whichever is the lesser.**

- **Second dwellings, especially where located at the rear of an allotment preferably should be single storey. Two storey dwellings may be permitted where it has been demonstrated that issues such as privacy, overshadowing and amenity to adjoining properties is satisfactory.**

- **At least 50% of the principal area of ground level private open space on all surrounding land parcels must receive at least 3 hours unobstructed sunlight between 9am and 3pm on 21 June.**

- **Sunlight to windows within living room areas of any surrounding dwelling is not be reduced to less than 3 hours unobstructed sunlight between 9am and 3pm on 21 June; and Development is not to result in the shading of any existing solar energy panels installed on any surrounding land parcel.**

Fencing

Intent

To ensure fences and walls, where used, improve amenity for residents and contribute positively to the streetscape and adjacent buildings.

Performance Criteria

- **Front fences and walls must enable some outlook from buildings to the street to achieve safety and surveillance.**
- **The design and material of fences should be compatible with surrounding development.**
- **Where overland flooding is likely to occur, fences should provide for the movement of water.**

Acceptable Solutions

Note: The Acceptable Solutions illustrate ONE WAY of meeting the associated performance criteria. Other methods are able to be proposed and are assessed on their ability to achieve the performance criteria.

Boundary	Position	Standard
Front	Main Road	1.5 metres OR 1.8m if at least 30% transparent.
	Feeder Road	1.2 metres (if solid) OR 1.8m if at least 50% transparent.
Side	Forward of Building Line	Graduated
	Behind Building Line	1.8 metres
Rear	-	1.8 metres
Corner Allotment	Front	As per 'Front' above
	Side – Forward of Building Line	Graduated
	Side – Behind Building Line	1.8 metres

Note: Consideration should be given alternate measures than a high fence such as increased landscaping or incorporating accepted noise reduction measures such as double brick, double glazing of windows or the like.

If a fence is proposed for a site which is listed within the Local Environmental Plan as a heritage item, or a place which may have heritage significance, please contact Council can suggest appropriate styles of fences which can add character to your house while being functional.

An example of a suitable open-panelled front fence

Private Open Space

Intent

To ensure private open space provided for dwellings is clearly defined, useable and meets user requirements for privacy, access, outdoor activities and landscaping.

Performance Criteria

Private open space should be of dimensions to suit the requirements of the dwelling occupants, including outdoor activities and landscaping.

The location of the private open space must take advantage of natural outlook and features of the site, as well as have access to sunlight in winter months.

Acceptable Solutions

Note: The Acceptable Solutions illustrate ONE WAY of meeting the associated performance criteria. Other methods are able to be proposed and are assessed on their ability to achieve the performance criteria.

1. **For dwelling houses no less than 20% of the lot area with a minimum depth of 5 metres;**
2. **For all multi unit developments the minimum area for private open space is 25m^2 for 1 bedroom units; 50m^2 for 2 bedroom units and 80m^2 for 3 or more bedroom units;**
3. **Balcony areas (for all dwellings) must have a minimum width of 2.5 metres and a minimum area of 10m^2 to be counted as private open space;**
4. **Must be directly accessible from a living area of the dwelling;**
5. **Must be located to the side or rear of the building line;**
6. **Preferably have a northerly aspect and achieve at least 3 hours of direct sunlight between 9.00am and 3.00pm on June 21 (winter solstice); and**
7. **Areas used for driveways, car parking, drying yards and service yards are not to be included in private open space.**

Landscaping

Landscaping for single dwellings must complement the streetscape character and additionally;

- **Provide privacy between dwellings;**
- **Assist in the energy efficiency of the building;**
- **Consist of low water usage, native vegetation;**
- **Not include species which are identified as weeds;**
- **Be at least 1 metre wide (where provided along boundaries) and include watering measures such as dripping systems; and**
- **Minimise the effects to overhead and underground services and utilities.**

Privacy

Regard must be given to protect the private open spaces and living areas of adjacent dwellings/units from direct overlooking from adjacent and adjoining development.

- **The windows of all habitable rooms are not located directly adjacent to windows or glazed openings of habitable rooms in adjacent dwellings;**
- **Windows of upper levels are to be located such that they do not look directly into the private open space or habitable rooms of adjoining dwellings;**
- **If windows must be located as such that they do not impact upon the privacy of adjoining dwellings, windows must be either glazed or sills are to be at least 1.5 metres above the floor level to ensure privacy of adjoining dwellings; and**
- **Landscaping will not be accepted as a measure in its own right to avoid privacy impacts, however is encouraged as an additional measure. Support is unlikely for lightweight 'tack on' screening measures such as lattice as they are not an integral part of the building's form.**

Building Design

Dwellings are to be designed so that:

- **Building materials are naturally textured and coloured and are sympathetic to the natural environment and are not reflective;**
- **Windowless facades are avoided on street frontages;**
- **Building design facilitates surveillance of streets and open spaces;**
- **Habitable areas (lounge, family rooms) should be designed and positioned within the dwelling to have a northerly or north-easterly aspect. This should be through a north - south or east-west building orientation;**

Domestic Outbuildings

The location of carports and garages should not diminish the attractiveness of the streetscape, the views of the dwelling from the street and integrate with features from associated buildings.

Domestic outbuildings means sheds, garages, carports and the like. Any domestic outbuilding must:

- **Be located behind the building line;**
- **Side setbacks are to comply with the Building Code of Australia;**
- **Must not contain any other sanitary fixtures other than a toilet and basin; and**
- **Not to be used for residential, commercial or industrial purposes, unless consent has been granted.**

Flooding

Certain land in the Narromine Shire is identified as flood prone (according to the Narromine Local Environmental Plan 2011). While this hazard may not prohibit the development, additional actions may need to be taken by the applicant to assist in further development of the land. In some cases an individual flood study may need to be conducted on the site to determine the extent of flooding on the land.

Refer to Appendix 1 of this plan for additional flood protection requirements.

Access and Car Parking

FOR DEVELOPMENTS ADJOINING NARROW LANEWAYS REFER TO COUNCILS DEVELOPMENT ADJOINING NARROW LANEWAYS - INTERIM POLICY

All land must have legal access to a public road. Usually this is in the form of direct vehicular access to a public road. In certain circumstances where direct access to a road is not possible, a right of way carriage way can be created over adjoining land.

Where access is provided to a formed Crown Road or a road not under the responsibility of the Council or the Roads and Maritime Services (RMS), the responsibility for maintenance is with the landowners.

Intent

To ensure the adequate provision of secure and accessible on-site car parking for dwelling residents and visitors.

Performance Criteria

- **All development applications are required to clearly identify the means of vehicular access, access points and the standard of access provided (all weather access). Vehicular access will be required to comply with relevant engineering standards.**

- **Car parking should be provided according to the projected needs of the development. This is determined by:**
  - **The number and size of the proposed dwellings**
  - **The availability of public transport**
  - **The availability of on street parking**
  - **The locations of local schools and shops**
  - **The occasional need for overflow parking**

Note: In this section the following definitions apply:

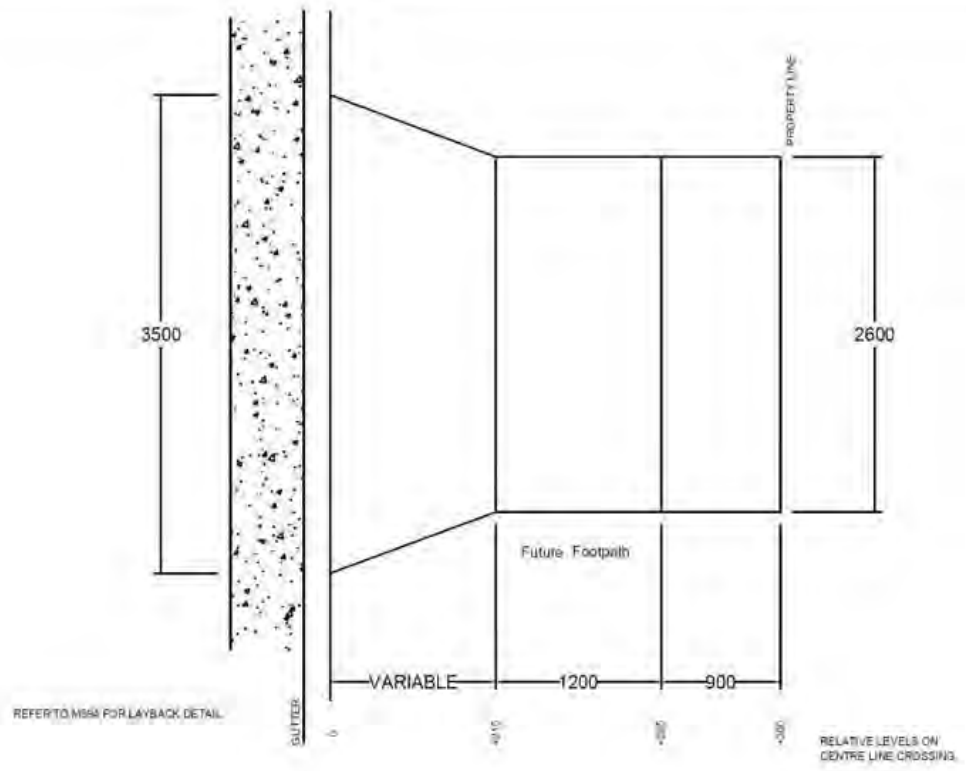
- ***Driveway* - means an all weather access across a table drain and may include pipes or culverts.**
- ***Crossover* - is the area between the driveway and the property boundary and may include a made footpath.**
- ***Private Property Entrance* – the roadway linking the edge of a Council Road to the private property boundary. The Private Property Entrance may traverse road reserve or stock route.**

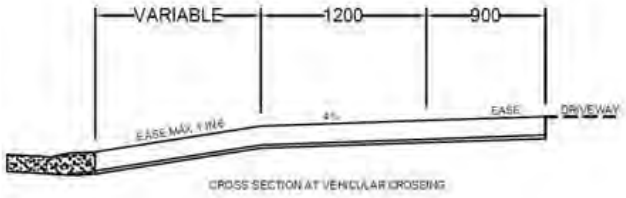
- ***Council Road*** **– a Council controlled road listed on the Narromine Shire Council Road Register.**

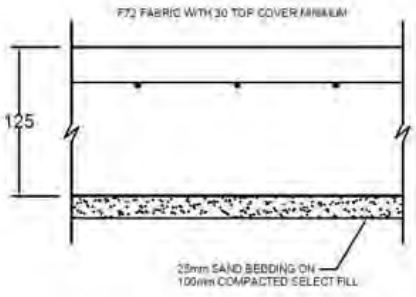
Acceptable Solutions

- **Single dwellings should be provided with two onsite parking spaces, one of which is protected from weather**
- **Vehicle access must be designed and constructed such that:**
    - **Public utilities and drainage infrastructure are able to be accommodated; and**
    - **Construction materials must be concrete or other all weather seal approved by Council so they do not cause noise or dust issues to the road surface or adjoining residences:**
- **Shared driveways/access for two or more dwellings must be a minimum of 8 metres for the first 6 metres from the entrance to the property and 6 metres thereafter**
- **Shared driveways must incorporate a minimum of 1 metre landscaped area along the side property boundary**

- **In residential areas with kerb and guttering:**
    - **Crossovers are to be constructed in reinforced concrete, 125mm thick with F72 mesh.**
    - **Gutter ramps, concrete in-fills or any other gutter obstruction are not permitted and will be removed, unless, in extreme circumstances, Council's written approval is given for such a device.**
    - **Roll back kerb and gutter will be used wherever possible to avoid the need for gutter crossings.**
    - **Where "roll back kerb and gutter" exists, kerb inverts are not required. Existing inverts may be used provided they are of sufficient width.**
    - **In the case of upright kerb, the kerb is to be removed and an invert crossing constructed. The driveway is to rise for 1.2 metres to at least the former level of the kerb and gutter, then rise at a 4% grade for another 1.2 metres before easing to the grade of the driveway.**
    - **Gutter crossings in excess of site requirements are to be removed and returned to kerb matching the area.**
    - **A crossing may remain in conjunction with residential use when it can be shown that leaving the crossing will have no effect on traffic or residential amenity of the area.**
    - **The location of the proposed crossover is not to conflict with public utilities services such as drainage pits and structures, services inspection pits, power or light poles, traffic medians and street trees.**





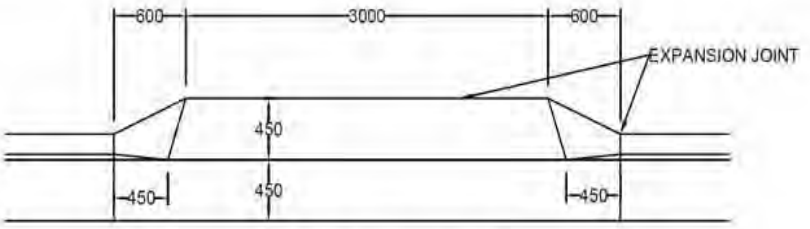


NOTE: ALL DIMENSIONS ARE IN MILLIMETRES

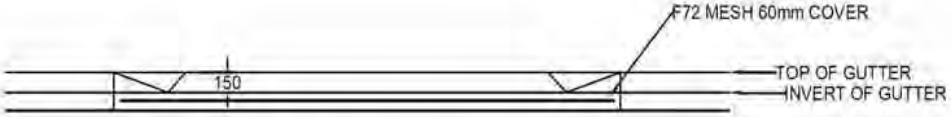
NOTES

1. Crossing shall be constructed to the approval of Council
2. All exposed edges to be rounded to 10mm radius
3. Concrete compressive strength at 28 days F'c 25Mpa.
4. An approved jointing material shall be placed to seperate all new and old edges
5. The standard shape of crossing shall be maintained. However in specific circumstances and with prior Council approval the dimensions may be altered
6. Any variation to standard footpath crossfall of 4% shall require prior Council approval
7. All crossings to be inspeced prior to pouring concrete
8. All dimension are in millimeters
9. All works to comply with Aus-Spec #2

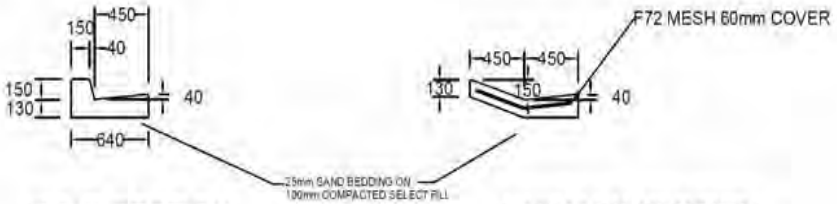
SCALE: NTS		
DRAWN: LG	STANDARD VEHICLE ACCESS..... URBAN	DRAWING No. ENG SERVICES 2009/02
CHKD:		
APP'D:		
MANAGER - ROADS		



PLAN OF LAYBACK



ELEVATION



K & G SECTION

LAYBACK SECTION

NOTES

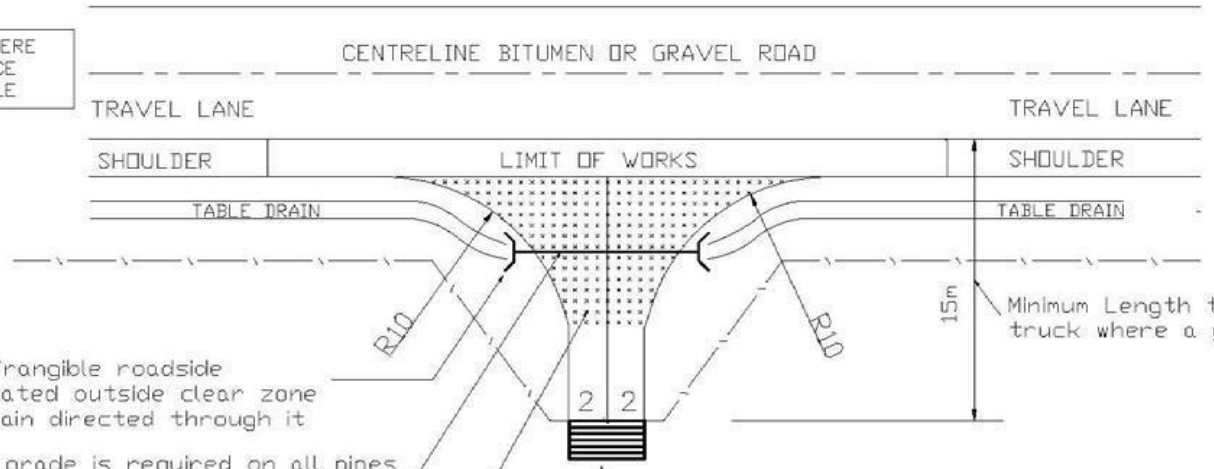
1. Crossing shall be constructed to the approval of Council
2. All exposed edges to be rounded to 10mm radius
3. Concrete compressive strength at 28 days F'c 25Mpa.
4. An approved jointing material shall be placed to seperate all new and old edges
5. The standard shape of crossing shall be maintained. However in specific circumstances and with prior Council approval the dimensions may be altered
6. Any variation to standard footpath crossfall of 4% shall require prior Council approval
7. All crossings to be inspeced prior to pouring concrete
8. All dimension are in millimeters
9. All works to comply with Aus-Spec #2

NOTE: ALL DIMENSIONS ARE IN MILLIMETRES

SCALE: NTS		
DRAWN: LG	STANDARD VEHICLE KERB AND GUTTER LAYBACK	DRAWING No. ENG SERVICES 2009/03
CHKD:		
APP'D:		
MANAGER - ROADS		

- **In residential areas without kerb and guttering:**
    - **Where kerb and guttering has not been provided but levels for the future kerb and guttering are available the proposed access must accommodate the future design.**
    - **Accesses are to be properly formed and drained so that stormwater is not channelled by the driveway onto the surface of Council's road. The driveway drainage should direct stormwater into Council's table drain.**
    - **Where the access crosses a table drain beside Council's road, a concrete pipe (minimum dia. 375mm, minimum length 5.0m with headwalls) is to be placed so that water in the table drain can flow unimpeded. In some instances a larger diameter pipe will be required, and this will be as directed by the General Manager (or delegate).**
    - **Where a crossover is proposed off a sealed road, the crossover is to also be sealed and drained.**

ACCESS TO BE LOCATED WHERE MINIMUM GAP SIGHT DISTANCE OF 5 SECONDS IS AVAILABLE



Minimum Length to store single unit truck where a gate restricts access

Headwalls and non-frangible roadside Furniture to be located outside clear zone having the table drain directed through it

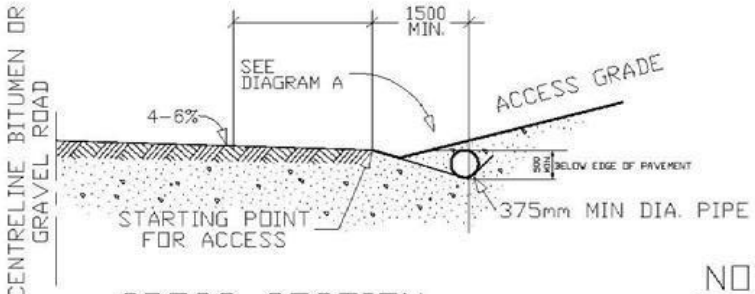
A minimum 1% grade is required on all pipes Tailout to site conditions to be approved by Council representitive

Access will be sealed to 10m offset

NOTE: Only applies for access off bitumen roads

A 4m Grid shall be installed if access point is less than 22m from edge line and is used by Articulated Vehicles. An inward opening 3.6m gate set back 15m from edge line is an alternative if access point is to be used only by single unit trucks

PLAN



CROSS SECTION

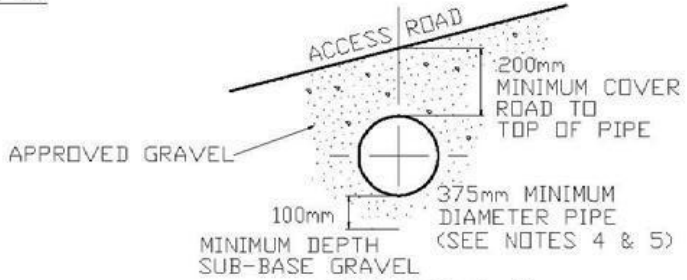


DIAGRAM A

NOTES:

1) HEADWALLS ARE TO BE PRECAST CONCRETE HEADWALLS.
2) ACCESS TO BE CONSTRUCTED IN ACCORDANCE WITH THIS PLAN, ANY VARIATION THEREFORE MUST BE APPROVED BY COUNCIL.
3) UNDER NO CIRCUMSTANCES MAY ACCESS INTRUDE BEYOND THE OUTER EDGE OF THE ROAD SHOULDER.
4) ANY VARIATION IN PIPE DIAMETER IS TO BE DETERMINED BY SITE INSPECTION.
5) PIPE LENGTH IS TO BE 4.9m MINIMUM.
6) DRIVEWAY TO BE SHAPED TO DIVERT WATER ALONG IT INTO TABLE DRAIN AND NOT ONTO THE THROUGH ROAD.
7) THIS PLAN SHOULD BE READ IN CONJUCTION WITH COUNCILS ADPOTED ACCESS TO PROPERTIES POLICY.

No.	DATE	APP	AMENDMENTS

SCALES: NOT TO SCALE

DATUM | SURVEY: Date: | DESIGN: DRAWN: GRAHAM GERMON CHECKED: ANDREW KEARNS

SHEET DETAILS

APPROVED: D. SCOTT MANAGER PLANNING DIVISION DATE:

STANDARD VEHICLE ACCESS RURAL

SHEET No. 1 | NUMBER OF SHEETS 1 | PLAN NUMBER

Work Near Water and Sewer Services

Council will not give approval for structures to be built over a sewer rising main, pressure sewer main, or a water main or within any Council easement or, whether or not an easement exists, within distances specified in this section for work near water and sewer services. Council may approve structures to be built adjacent to a sewer (gravity or pressure), a sewer rising main or a water main providing precautions are taken with the design of the footings. Structural Engineers' details will be required.

This section covers policies relating to building over or adjacent to the following Council owned pipes throughout the Council area:

- Sewers.
- Sewer rising mains.
- Pressure sewer mains
- Water mains.

In recently constructed subdivisions the above pipelines are located in an easement. The easement provides a means for Council to gain access to the pipelines. If an easement has been designated, it will be shown on the deposited plan for the block. Where a formal easement does not exist, Council has a legal powers-of-entry to obtain access to the pipes.

Objectives

This section aims to:

- ü Preventing structural damage to the water or sewer pipes. This damage is a result of the load from the structure bearing on the pipe work. This may cause the pipes to subside and/or fracture.
- ü Preventing damage to buildings. Buildings located on or near underground pipes can be subject to subsidence with consequent damage to the structure. Subsidence can occur when a pressurised pipeline breaks and the flow of water undermines the surrounding soils. When a hole occurs in an underground sewer, the surrounding soil can be drawn into the pipe leaving a void, which may then collapse. Any structure located over or near this collapsing ground may be damaged unless piers adequately support it.
- ü Maintaining access to manholes, junctions and inspection shafts. This will allow staff to undertake regular maintenance to pipe work without having to remove structures. Sewers, in particular, are subject to blockages that need to be cleared quickly.
- ü Enabling efficient and economical access to pipe work for major repairs and/or replacement without damaging structures. Large earthmoving equipment is used to repair pipelines. This equipment needs room to manoeuvre. Structures that are too close to the line will make access difficult and may also be at risk of being damaged.

- ü Reducing future maintenance costs to Council. It is unreasonable that Council, and subsequently our customers, should incur unnecessary costs when carrying

Refer to Councils Building Over Sewers Policy 2016

out maintenance and/or repairs caused by having to remove and then replace structures that have been built over or too close to an underground line.

- ü Providing a consistent approach to building over or near underground pipe work throughout the Council area. This will assist in maintaining the structural integrity of existing buildings that may be affected by new building proposals. Existing buildings may become at risk where a new building has been built without consideration for nearby pipelines. A new structure may impose a load on an underground line causing it to fail. This failure may, in turn, cause damage to the existing structures.

New Development

When an application is made to build a new structure or extend and/or alter an existing structure, an assessment is made of the effect the proposal may have on any nearby sewers, sewer rising mains or water mains. All development/building applications should show the position of any sewer or water mains in relation to the property and existing or proposed structures. Plans should be drawn at a scale of 1:200 or 1:100.

It is advisable to contact Council to ascertain the general location of any pipelines and whether special designs will be required for the proposed structure before submitting plans. If any part of the proposed structure is to be located over the underground pipeline, within the easement or, where an easement does not exist, within specified distances of the pipeline then the application may be refused. In this case the applicant will be requested to redesign the structure so that it does not encroach on the underground pipeline.

Before plans are submitted, the applicant should have a surveyor locate the pipeline to ensure that footing designs will be adequate for the proposed structure. This may be required in some circumstances where Councils records cannot be confirmed.

Building Near an Underground Water Main or Sewer Rising Main

These pressure mains are usually located in footpaths or roadways and are sited well away from most structures. However, occasionally pressure mains are located through private property and in these cases special advice should be obtained from Council before commencing design work. A burst water main may quickly cause severe damage to an adjacent structure.

Building near an Underground Gravity Sewer

Where easements are not provided

Where an easement has not been provided then the following distances will apply.

The closest distance that the external edge of a structure can be located to the outside edge of a sewer or drainage line is:

- 1050mm from the outside edge of an overhang such as an eave or gutter.
- 1500mm from an external wall or footing.

Refer to Councils Building Over Sewers Policy 2016

(The above distances allow a maximum eave overhang of 450mm. For larger overhangs the distance of the wall to the side of pipeline would have to be greater than 1500mm).

NOTE: These distances are measured horizontally between the proposed structure and a line drawn vertically from the side of the pipeline.

An allowance may be made for 2 or more storey structures where the eave is well above the ground level (>3000mm) to allow further encroachment of an overhang. In these cases an individual assessment will be made. This assessment will consider the distance from the pipe to the external wall of the structure, the distance from the lowest point of the overhang to the ground level, the depth of the pipe and the difficulty of access for machinery.

Where easements are provided

Easements of specified width are defined on the Deposited Plan for each lot. Where an easement has been provided the following conditions will apply.

- **No external wall of a structure can be built within an easement.**
- **An overhang is permitted within an easement. Where a structure is to be built up to the easement the maximum eave overhang would be 450mm**
- **It cannot be assumed that the underground pipe will always be located in the centre of the easement. Where the pipe has been located to one side of an easement then it may be necessary for a structure to be located well outside the easement to maintain the minimum distances from the pipe. In these cases an individual assessment will be made to determine the minimum wall and eave setbacks required. This assessment will consider the distance from the pipe to the edge of the easement, the depth of the pipe and the difficulty of access for machinery.**

Zone of Influence for Sewers and Drains

The "zone of influence" is located within the soils surrounding a pipe and is that part of the soils that will be affected by any damage occurring to the pipe or during excavation of a trench. For example, should a pipe break or a joint leak, subsidence may occur within the zone of Influence. The depth of the pipeline, the type of soil and the slope of the site determine the size of the zone.

How the zone of influence is calculated:

- **The line depth and its position in relation to the proposed building site is found. (These details are taken from Council's records or by inspection of the site).**
- **The depth of the trench containing the pipe work is calculated by adding 300mm to the pipe depth.**
- **The width of the trench depends on the pipe diameter. As a guide, pipes up 225mm diameter will have a trench width of 600mm whilst pipes over 225mm diameter will have a trench width of 1000mm. In the case of large diameter**

Refer to Council's Building Over Sewers Policy 2016

pipes and/or deep trenches the trench width may be larger than the preceding values. In these cases an individual assessment will be made.

- **The zone is calculated using the depth of the trench and half the trench width. This calculation varies due to the type of soil present. Figures 1 and 2 indicate the zone of influence for clay soils and for sand, filled ground and loam respectively.**

Refer to Councils Building Over Sewers Policy 2016

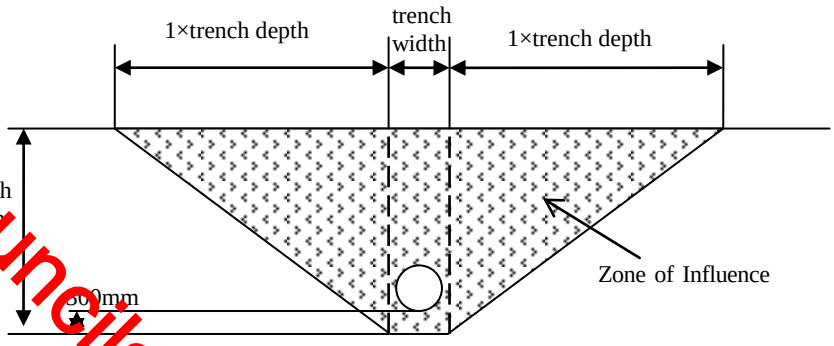


Figure 1 Zone of Influence for Clay Soils

As Figure 1 indicates, the zone of influence extends out from the edge of the pipe trench the same distance as the depth of the trench (The ratio used is 1:1). For clay soils the zone will extend the same distance as the depth plus half the width of the trench. For example, for a pipeline of 150mm diameter and a depth of 1500mm, the trench depth is 1800mm deep (i.e. 1500 + 300) therefore, the zone extends 210 mm from the pipe centre line (i.e. 1800 + 300).

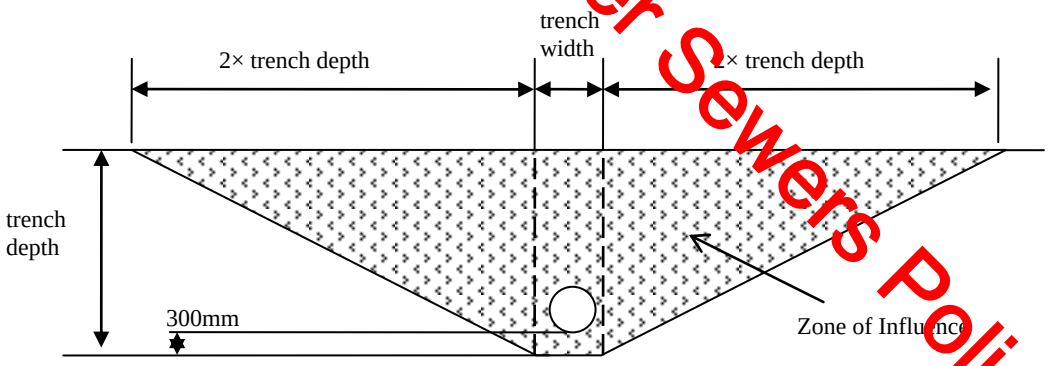


Figure 2 Zone of Influence for Sand, Filled Ground and Loam

The zone of influence extends out from the edge of the pipe trench twice the distance as the depth of the trench. (The ratio used is 2:1). For sand, filled ground (including controlled fill), loam, etc. the zone will extend twice the depth of the trench plus half the width of the trench. For example, for a pipe line of 375mm diameter and a depth of 2500mm, the trench depth is 2800mm deep (i.e. 2500 + 300) therefore, the zone extends 6100mm from the pipe centre line (i.e. (2800 x 2)

+ 500)). The zone of influence may be affected by the topography of the site. If the proposed building is to be located on a slope above the pipe then the zone may be substantially extended. Alternatively, if the proposed building is to be located on a slope below the pipe then the zone may be substantially reduced. On steep blocks substantial footings may be required to overcome the effect of the zone of influence. Figures 3, 4 and 5 indicate the effect on the zone of influence in relation to topography.

Refer to Councils Building Over sewers Policy 2016

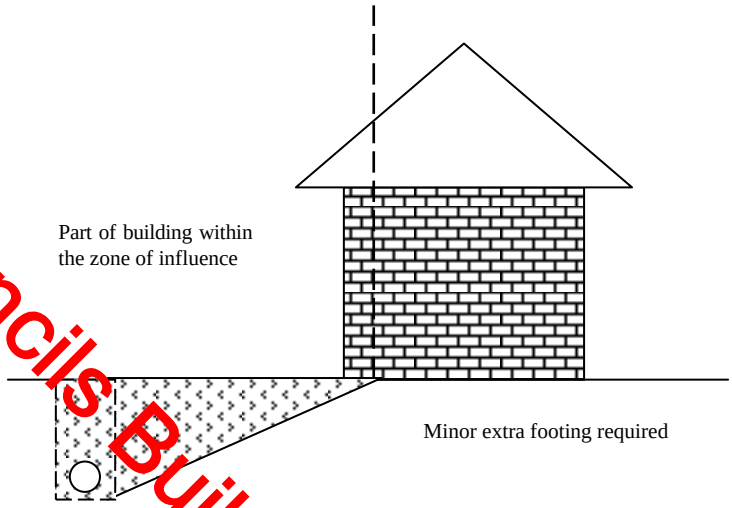


Figure 3 Zone of Influence on Flat Ground

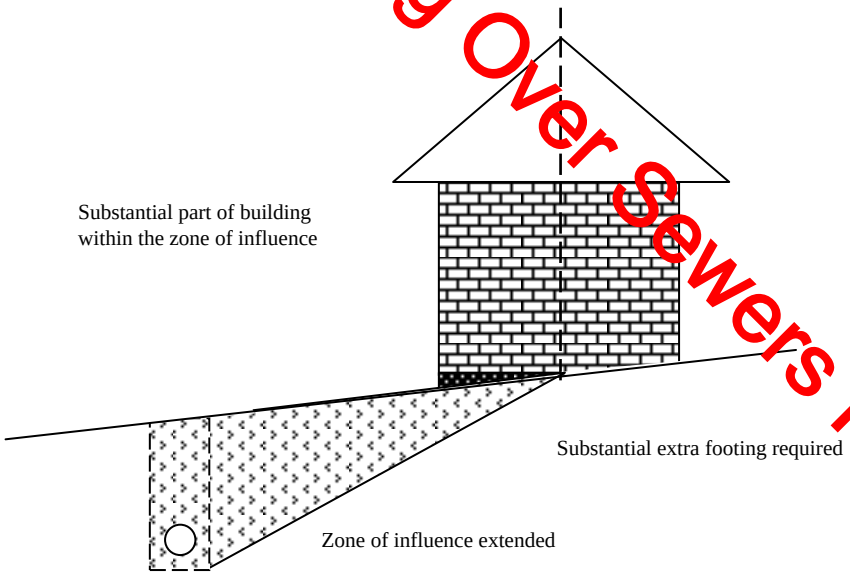


Figure 4 Zone of Influence where pipe is located downhill from building

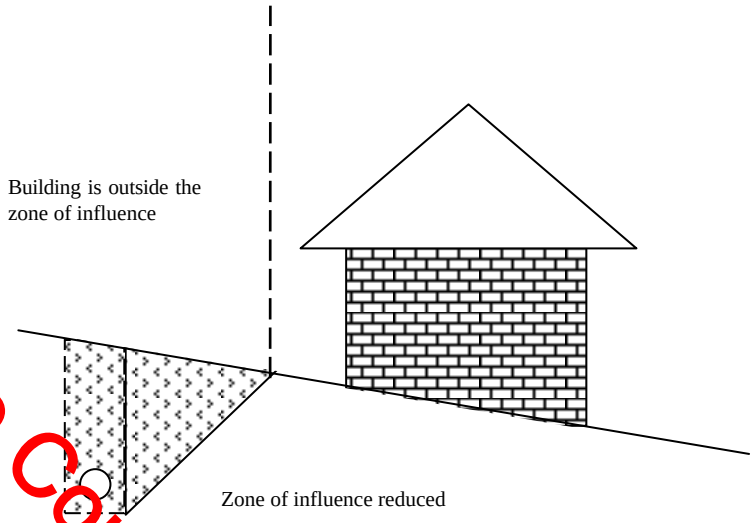


Figure 5 Zone of Influence where pipe is located uphill from building

Minor Exceptions for Building over Sewers

Minor exceptions may be made to this policy to allow certain limited, light demountable structures to be built adjacent to or over sewers where it can be demonstrated that the operation and maintenance of Council's assets will not be hindered. Where an applicant feels that the underground mains will unreasonably limit their design then discussions should be held with Council staff to explore options before submitting a proposal.

The types of structures that may be considered are limited to light timber or metal carports, relocatable garden sheds, pergolas and awnings that are bolted together and can readily be removed, car parking areas, fences and gardens. Properly designed retaining walls that cross the easement at right angles to the pipeline may also be permitted. No other structures will be permitted. Any structures approved under this section of the policy cannot be altered (eg by enclosing carports with walls to make a garage) without Council approval.

If it is found necessary to demolish or relocate, or mains failure results in damage to any structure over Council's mains, Council will not be liable for any associated costs.

The types of structures that may be refused approval include (but is not limited to) carports, pergolas and awnings that have been permanently fixed (eg using nails, welds, etc.), garages, fixed garden sheds, aviaries, ferneries, glasshouses, pools and sporting facilities (eg tennis courts using artificial surfaces) etc.

Where this policy restricts the ability to develop in an appropriate manner for that area (eg commercial areas) then proposals will be investigated on an individual basis in line with the aims of this policy.

Refer to Councils Building Over Sewers Policy 2016

Existing Structures

Where structures have been built over an underground pipeline without Council approval then Council may require that the structure be demolished, moved or substantially modified so that it complies with this policy.

Where it is necessary to access an underground line for maintenance or repair work Council will not be held liable for the cost of restoring any illegal structures and the property owner may be charged for extra work required due to the illegal structure.

Where a structure has been given permission, previously by Council, to be built over a pipeline then no further extensions, additions or reconstructions will be allowed. Council recognises that the existing structure presents a risk to both the building and Council's liability. Therefore Council will not be prepared to increase this risk by approving further structures or additions and alterations.

Application Requirements

All Development and Construction Certificate applications where the structure is to be built adjacent to a Council sewer will be required to have footing details that show how the proposed structure will be designed to accommodate the zone of influence from these adjacent pipelines. These details must be designed and certified by a Structural Engineer. Plans should be drawn to an appropriate scale (i.e.1:200 or 1:100).

Glossary

Manhole - Used to provide direct access to the sewers for maintenance and clearing blockages. Located where sewers change direction or at about every 100 metres on long lines. They are usually concrete, about 600 mm in diameter and flush with the ground.

Junction - This is the point where household pipes connect to the Council's sewer line.

Inspection Shafts - This is a pipe rising to ground level that is the connection point between the owner's pipes and Council's pipes. It is usually a PVC pipe, either 100 mm or 150 mm in diameter and finished 100 mm above ground level with a concrete surround. The inspection shaft is used to access both the owner's pipes and Council's pipes when there is a blockage etc.

Easement - Is a strip of land set aside for the laying of underground pipes. Not all lots have easements and not all underground lines are located in easements. If a lot has an easement it will be shown on the deposited plan that is created when the land is subdivided.

Refer to Councils Building Over Sewers Policy 2016

Sewers - These pipes take wastewater from dwellings, shops and industrial premises. The drains from kitchen sinks, laundry tubs, showers, baths, hand basins, toilets, etc, are connected to the sewer line.

Sewer Rising Mains - These pipelines take wastewater from sewer pumping stations to the treatment plant.

Water mains - These pipelines provide treated drinking water to dwellings, shops and industrial premises.

Refer to Councils Building Over Sewers Policy 2016

Additional Requirements for Multi Unit Developments

These requirements are aimed at dual occupancies, townhouses villas and residential flat buildings.

Clothes Drying

Provision must be made for an outdoor clothes drying area for each dwelling. This area must not be located on balconies or within the front setbacks of dwellings. This area must also receive adequate sunlight, especially during winter.

Garbage Storage Areas

For dual occupancies, each unit may have their own general garbage bin and recycling bin. For three or more dwellings, a shared bin arrangement may be considered (eg one bin shared between two units). A garbage storage area will be required to be provided on site. This area must be:

- **Easily accessible for both the residents and waste collection service;**
- **Screened from public view; and**
- **Incorporate the relevant requirements of the NSW Department of Environment and Climate Change (DECC) 2009 *Better practice guide for waste management in multi-unit dwellings.***

Letterboxes

Separate letterboxes are to be provided for each unit and provided in a single location adjacent to the street frontage and pedestrian entrance to the property.

Storage Areas

Each dwelling must incorporate an outbuilding or space within the dwelling unit of a minimum area of 8 cubic metres (m^3) for the storage of goods such as garden tools and materials usually stored in a shed or area attached to the garage.

Water and Sewer

Multiple dwelling developments should be designed with a view towards future subdivision (including strata) potential and required infrastructure installed at construction stage. For example, individual water meters may be required for all units.

Car Parking

A minimum of one car parking space per unit is required, plus an additional one space per two units for visitors. Consideration may be given to allowing some of the required spaces to be on street.

Landscaping

For dual occupancies, multi unit development and residential flat buildings, the following requirements apply:

- **A minimum landscaped area of 40% of the site area is to be provided;**
- **Site landscaping, in accordance with the approved plan must be provided prior to the issue of the occupation certificate; and**
- **Landscaped areas do not include pathways, access, car parking areas and the like.**
- **Avoid medium height (1-2 metres) vegetation with concentrated top to bottom foliage. Plants such as low hedges, shrubs, creepers, ground covers and high canopied vegetation are good for natural surveillance;**
- **Trees with dense low growth foliage should be spaced or the crown raised to avoid a continuous barrier;**
- **Use low ground cover or high canopied trees with clean trunks;**
- **Avoid vegetation which conceals the building entrance from the street; and**
- **Avoid vegetation that impedes the effectiveness of public and private space lighting.**

Crime Prevention

Crime Prevention Controls	
Lighting	
Lighting is important in crime prevention and personal safety as you can see and respond to what is around you. Lighting ensures people can be seen which reduces the likelihood of criminal activity.	**§ All areas intended to be used at night should allow for a level of visibility;** **§ Pedestrian pathways, lane ways and access routes to outdoor public spaces should be lit in accordance with Australian Standard (AS) 1158 – lighting for roads and public spaces and AS 4282 – Control of the obtrusive effects of outdoor lighting;** **§ Lighting should be directed to access and egress routes rather than towards buildings;** **§ Lighting should be designed so that it is difficult for vandals to damage the lighting;** **§ Use of movement sensitive and diffused lights are encouraged where appropriate;** **§ Avoid or minimize lighting spillage into neighbouring properties (especially where the adjacent site includes residential development) as this can cause nuisance and reduce opportunities for natural surveillance;** **§ Illuminate areas where intruders may hide thus reducing entrapment spots; and** **§ Use energy efficient lamps to save energy.**

Fencing	
Fencing that is too high or made of inappropriate materials reduces the opportunity for casual surveillance of the street and for people on the street to see what activities are taking place on your site.	**§ Fence design should maximize natural surveillance from the street to the building as well as from the building to the street and minimize the opportunities for intruders to hide; and** **§ In locations such as along busy roads, or adjacent to a railway line where noise insulation is required, incorporating measures within the building such as double glazing at the front of the building, use double brick at the front and other similar measures is a better option.**
Car Parking	
Car parks that are poorly designed can discourage use, especially after dark as they can be a dangerous environment for users. Lighting and signage can make these areas safer.	**§ Car parks should be designed to ensure that passive surveillance is possible and where appropriate incorporate active measures such as cameras and security patrols; and** **§ Potential entrapment points (places where offenders hide) should be avoided (for example under stairs, blind corners and wide columns).**
Entrapment Spots and Blind Corners	
Entrapment spots and blind corners provide ideal opportunities for perpetrators of crime to hide and commit crime.	**§ Pathways should take a direct route and be easily accessible** **§ Where appropriate, the installation of mirrors allow users to see ahead and around corners; and** **§ Entrapment spots adjacent to main pedestrian routes such as storage areas or alleys should be avoided.**
Landscaping	
Trees and shrubs are good for beautifying any development, however, when inappropriately located can reduce surveillance opportunities and provide entrapment spots.	**§ Avoid medium height (1-2 metres) vegetation with concentrated top to bottom foliage. Plans such as low hedges, shrubs, creepers, ground covers and high canopied vegetation are good for natural surveillance;** **§ Trees with dense low growth foliage should be spaced or the crown raised to avoid a continuous barrier;** **§ Use low ground cover or high canopied trees with clean trunks;** **§ Avoid vegetation which conceals the building entrance from the street; and** **§ Avoid vegetation that impedes the effectiveness of public and private space lighting.**

Communal/Public Areas	
Communal areas or areas of open space that do not have adequate natural surveillance are a risk to personal safety.	• **Waiting areas should be close to areas of active uses and be visible from the building entry; and** • **Seating should be located in areas of active uses.** • **Position commonly used habitable rooms (i.e. living rooms, family rooms, kitchens etc) with windows adjacent to communal or open space;** • **Communal areas and utility areas (clothes drying areas and waste management areas) should be easily seen and well lit;**
Entrances	
The entrance of any development that is not visible from a public area provides an opportunity for criminal behaviour. Entrances to a development need to be clearly visible to ensure users can gain entry expediently.	• **Design entrances to allow users to see into buildings before entering;** • **Entrances should be easily recognizable through design features and directional signage;** • **Minimise the number of entry points;** • **Staff entrances, where they must be separated from the main entrance, should maximize opportunities for natural surveillance from the street; and** • **Avoid blank walls fronting the street.**

Development along Rail Corridors

Development subject to this clause is identified as noise-sensitive development (ie dwellings, churches, hospitals, nursing homes, and schools) within 60 metres of a railway corridor.

Rail noise and vibration can adversely affect people living near to the railway in terms of loss of amenity, quiet enjoyment of their property and interruption of sleep habits. Council aims to work with residents to ensure rail operations provide as minimal impact as possible.

Vibration is measured in displacement, velocity or acceleration. The unit of measure is usually millimetres per second (mm/s). Excessive vibration is measured in human discomfort values and risk of property damage. Full information on vibration assessment can be found on the NSW Office of Environment and Heritage website.

The recommended standards below should be both designed into a development and verified after construction, prior to the release of an occupation certificate. The assessment of these noise levels (acoustic assessment) should be undertaken by a suitably qualified consultant.

Recommended Noise Standards

Internal Space	Time Period	Railway Noise Level (L_{Aeq}/1hr)
Living and sleeping areas	Day (7am-10pm)	≤40 dBA
	Night (10pm-7am)	≤35 dBA

Note 1: These readings are to be measured with all doors and windows closed.
Note 2: LAeq/1hr means the equivalent continuous noise level for the 1 hour period. The noisiest period of time should be used for assessment.

The above standards can be achieved through a number of options, including:

- **Brick, brick veneer or blockwork construction**
- **Solid core external doors with seals,**
- **Glazing of at least 6mm in thickness, and acoustic seals on windows**
- **Fibre insulation such as fibreglass or polyester bats in wall and roof cavities**

Additionally, the design of the site of the development can contribute to noise mitigation. These measures may include: a physical barrier (ie wall or embankment), setbacks, landscaping and orientating the living areas of the dwelling away from the source of the noise.

Seniors and Retirement Living

The State Environmental Planning Policy (Housing for Seniors or People with a Disability) 2004 and associated guidelines outline the requirements for development for the purposes of seniors living or people with a disability. As part of the assessment for an application of this nature, a statement is required, considering the following:

(i) explaining how the design of the proposed development has regard to the site analysis, and
(ii) explaining how the design of the proposed development has regard to the design principles set out below.

A Site Analysis must include the following information:

Heading	Information Required
Site dimensions:	**a. length** **b. width**
Topography:	**a. spot levels and/or contour** **b. north point** **c. natural drainage** **d. any contaminated soils or filled areas**
Services:	**a. easements** **b. connections for drainage and utility services**
Existing vegetation:	**a. location** **b. height** **c. spread of established trees** **d. species**
Micro climates:	**a. orientation** **b. prevailing winds**
Location of:	**a. buildings and other structures** **b. heritage features and items including archaeology** **c. fences** **d. property boundaries** **e. pedestrian and vehicle access**
Neighbouring buildings:	**a. location** **b. height** **c. use** **d. balconies on adjacent properties** **e. pedestrian and vehicle access to adjacent properties**

Privacy:	**a. adjoining private open spaces** **b. living room windows overlooking site** **c. location of any facing doors and/or windows**
Walls built to the site's boundary:	**a. location** **b. height** **c. materials**
Street frontage features:	**a. poles** **b. trees** **c. kerb crossovers** **d. bus stops** **e. other services**
The built form and character of adjacent development (including buildings opposite on both sides of the street(s) fronted):	**a. architectural character** **b. front fencing** **c. garden styles**
Direction and distance to local facilities:	**a. local shops** **b. schools** **c. public transport** **d. recreation and community facilities**
Public open space:	**a. location** **b. use**
Sources of nuisance:	**a. flight paths** **b. noisy roads or significant noise sources** **c. polluting operations**
Neighbouring Properties	**a. Views to and from the site** **b. Overshadowing by neighbouring structures** **c. Difference in levels between the site and adjacent properties at their boundaries** **d. Views and solar access enjoyed by neighbouring properties** **e. Major trees on adjacent properties** **f. Heritage features of surrounding locality and landscape** **g. Adjoining bushland or environmentally sensitive land** **h. Adjoining land uses and activities (such as agricultural activities)**

The following Design Principles must also be addressed:

Heading	Information Required
Neighbourhood amenity and streetscape	(a) recognise the desirable elements of the location's current character (or, in the case of precincts undergoing a transition, where described in local planning controls, the desired future character) so that new buildings contribute to the quality and identity of the area, and (b) retain, complement and sensitively harmonise with any heritage conservation areas in the vicinity and any relevant heritage items that are identified in a local environmental plan, and (c) maintain reasonable neighbourhood amenity and appropriate residential character by: (i) providing building setbacks to reduce bulk and overshadowing, and (ii) using building form and siting that relates to the site's land form, and (iii) adopting building heights at the street frontage that are compatible in scale with adjacent development, and (iv) considering, where buildings are located on the boundary, the impact of the boundary walls on neighbours, and (d) be designed so that the front building of the development is set back in sympathy with, but not necessarily the same as, the existing building line, and (e) embody planting that is in sympathy with, but not necessarily the same as, other planting in the streetscape, and (f) retain, wherever reasonable, major existing trees, and (g) be designed so that no building is constructed in a riparian zone.
Visual and acoustic privacy	(a) appropriate site planning, the location and design of windows and balconies, the use of screening devices and landscaping, and (b) ensuring acceptable noise levels in bedrooms of new dwellings by locating them away from driveways, parking areas and paths.
Solar access and design for climate	(a) ensure adequate daylight to the main living areas of neighbours in the vicinity and residents and adequate sunlight to substantial areas of private open space, and (b) involve site planning, dwelling design and landscaping that reduces energy use and makes the best practicable use of natural ventilation solar heating and lighting by locating the windows of living and dining areas in a northerly direction.
Stormwater	(a) control and minimise the disturbance and impacts of stormwater runoff on adjoining properties and receiving waters by, for example, finishing driveway surfaces with semi-pervious material, minimising the width of paths and minimising paved areas, and (b) include, where practical, on-site stormwater detention or re-use for second quality water uses.
Crime prevention	(a) site planning that allows observation of the approaches to a dwelling entry from inside each dwelling and general observation of public areas, driveways and streets from a dwelling that adjoins any such area, driveway or street, and (b) where shared entries are required, providing shared entries that

	serve a small number of dwellings and that are able to be locked, and (c) providing dwellings designed to allow residents to see who approaches their dwellings without the need to open the front door.
Accessibility	(a) have obvious and safe pedestrian links from the site that provide access to public transport services or local facilities, and (b) provide attractive, yet safe, environments for pedestrians and motorists with convenient access and parking for residents and visitors.
Waste management	The proposed development should be provided with waste facilities that maximise recycling by the provision of appropriate facilities.

Subdivision

Minimum Lot Size

The Narromine Local Environmental Plan 2011 specifies a minimum allotment size for residential subdivision.

Subdivision of lots under clause 4.1A and 4.1 B of Narromine LEP

These sections of the LEP identify that it is permissible to subdivide land into lots under the identified minimum lot size under certain conditions. In these instances, the application for subdivision must be accompanied by an application for the associated dwelling house. This is to ensure the layout and design of the dwelling is suitable for the smaller lot and vice versa.

Dimensions

The minimum width of an allotment at the front boundary must be not less than 25 metres. Consideration may be given to lots where access is via a battleaxe access handle. The width of a battleaxe handle is to have a minimum width of 6 metres for access to a single dwelling and a minimum of 8 metres for the first 6 metres from the entry of the lot, and 6 metres thereafter, for two or more dwellings

Services, Storm water and Roads

Development applications for subdivisions that are located within a town boundary and propose to connect to reticulated water, storm water and sewerage systems must also include preliminary engineering drawings. Such drawings must include the design of the water and sewerage systems and any roads proposed.

Consideration should be given to the availability of electricity, telephone and gas services available to the site.

For larger scale subdivisions, consideration should be given to the incorporation of Water Sensitive Urban Design principles.

Access

All land must have legal access to a public road. Usually this is in the form of direct vehicular access to a public road. In certain circumstances where direct access to a road is not possible, a right of way carriage way can be created over adjoining land.

Where access is provided to a formed Crown Road or a road not under the responsibility of the Council or the Roads and Maritime Services (RMS), the responsibility for maintenance is with the landowners.

FOR DEVELOPMENTS ADJOINING NARROW LANEWAYS REFER TO COUNCILS DEVELOPMENT ADJOINING NARROW LANEWAYS - INTERIM POLICY

Intent

To ensure the adequate provision of secure and suitable on-site vehicle access for dwelling residents and visitors.

Performance Criteria

- **All development applications are required to clearly identify the means of vehicular access, access points and the standard of access provided (all weather access). Vehicular access will be required to comply with relevant engineering standards.**

Note: In this section the following definitions apply:

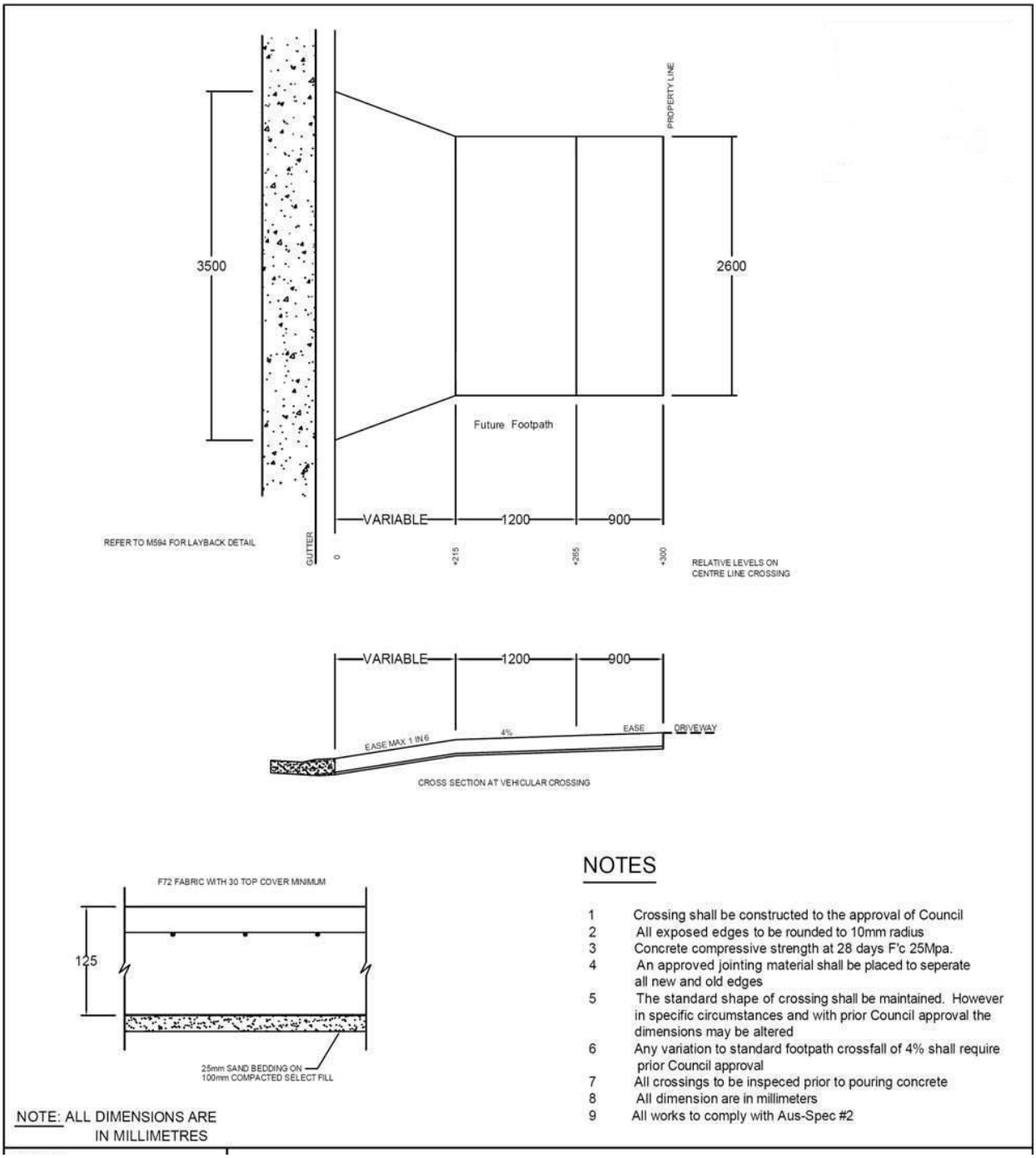
- ***Driveway* - means an all weather access across a table drain and may include pipes or culverts.**
- ***Crossover* - is the area between the driveway and the property boundary and may include a made footpath.**
- ***Private Property Entrance* – the roadway linking the edge of a Council Road to the private property boundary. The Private Property Entrance may traverse road reserve or stock route.**
- ***Council Road* – a Council controlled road listed on the Narromine Shire Council Road Register.**

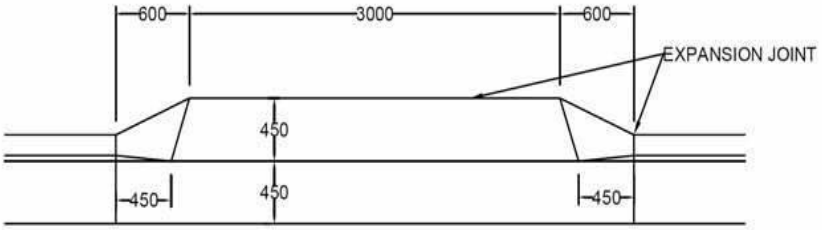
Acceptable Solutions

- **Vehicle access must be designed and constructed such that:**
  - **Public utilities and drainage infrastructure are able to be accommodated; and**
  - **Construction materials must be concrete or other all weather seal approved by Council so they do not cause noise or dust issues to the road surface or adjoining residences:**
- **Shared driveways/access for two or more dwellings must be a minimum of 8 metres for the first 6 metres from the entrance to the property and 6 metres thereafter**
- **Shared driveways must incorporate a minimum of 1 metre landscaped area along the side property boundary**

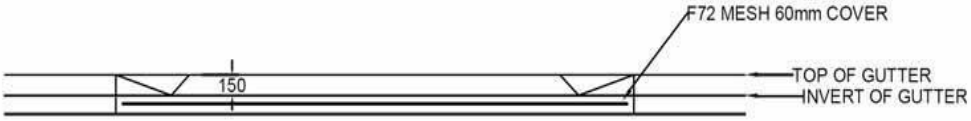
- **In residential areas with kerb and guttering:**
  - **Crossovers are to be constructed in reinforced concrete, 125mm thick with F72 mesh.**
  - **Gutter ramps, concrete in-fills or any other gutter obstruction are not permitted and will be removed, unless, in extreme circumstances, Council's written approval is given for such a device.**
  - **Roll back kerb and gutter will be used wherever possible to avoid the need for gutter crossings.**
  - **Where "roll back kerb and gutter" exists, kerb inverts are not required. Existing inverts may be used provided they are of sufficient width.**

- **In the case of upright kerb, the kerb is to be removed and an invert crossing constructed. The driveway is to rise for 1.2 metres to at least the former level of the kerb and gutter, then rise at a 4% grade for another 1.2 metres before easing to the grade of the driveway.**
- **Gutter crossings in excess of site requirements are to be removed and returned to kerb matching the area.**
- **A crossing may remain in conjunction with residential use when it can be shown that leaving the crossing will have no effect on traffic or residential amenity of the area.**
- **The location of the proposed crossover is not to conflict with public utilities services such as drainage pits and structures, services inspection pits, power or light poles, traffic medians and street trees.**

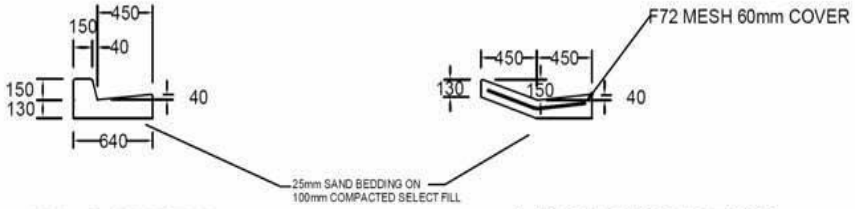




PLAN OF LAYBACK



ELEVATION



K & G SECTION

LAYBACK SECTION

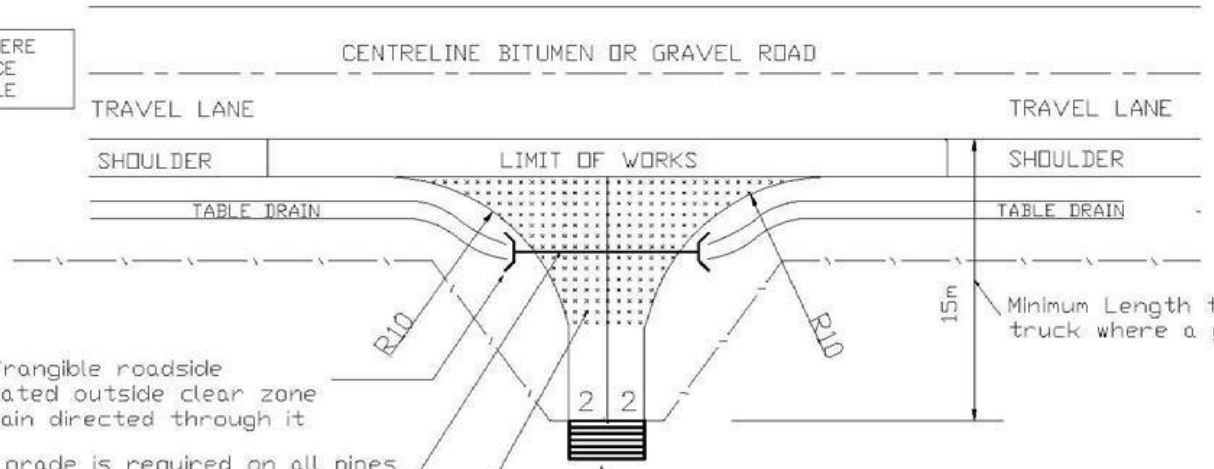
NOTES

1. Crossing shall be constructed to the approval of Council
2. All exposed edges to be rounded to 10mm radius
3. Concrete compressive strength at 28 days F'c 25Mpa.
4. An approved jointing material shall be placed to seperate all new and old edges
5. The standard shape of crossing shall be maintained. However in specific circumstances and with prior Council approval the dimensions may be altered
6. Any variation to standard footpath crossfall of 4% shall require prior Council approval
7. All crossings to be inspeced prior to pouring concrete
8. All dimension are in millimeters
9. All works to comply with Aus-Spec #2

NOTE: ALL DIMENSIONS ARE IN MILLIMETRES

- **In residential areas without kerb and guttering:**
  - **Where kerb and guttering has not been provided but levels for the future kerb and guttering are available the proposed access must accommodate the future design.**
  - **Accesses are to be properly formed and drained so that stormwater is not channelled by the driveway onto the surface of Council's road. The driveway drainage should direct stormwater into Council's table drain.**
  - **Where the access crosses a table drain beside Council's road, a concrete pipe (minimum dia. 375mm, minimum length 5.0m with headwalls) is to be placed so that water in the table drain can flow unimpeded. In some instances a larger diameter pipe will be required.**
  - **Where a crossover is proposed off a sealed road, the crossover is to also be sealed and drained.**

ACCESS TO BE LOCATED WHERE MINIMUM GAP SIGHT DISTANCE OF 5 SECONDS IS AVAILABLE



Minimum Length to store single unit truck where a gate restricts access

Headwalls and non-frangible roadside Furniture to be located outside clear zone having the table drain directed through it

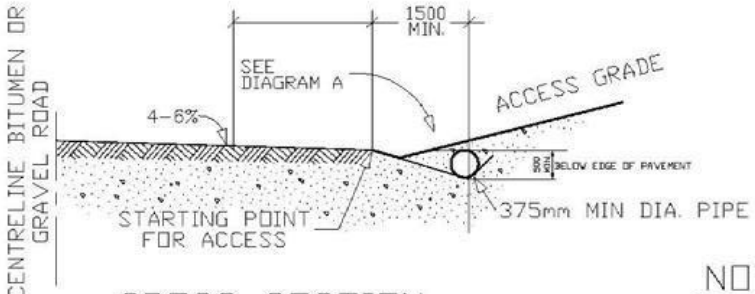
A minimum 1% grade is required on all pipes Tailout to site conditions to be approved by Council representitive

Access will be sealed to 10m offset

NOTE: Only applies for access off bitumen roads

A 4m Grid shall be installed if access point is less than 22m from edge line and is used by Articulated Vehicles. An inward opening 3.6m gate set back 15m from edge line is an alternative if access point is to be used only by single unit trucks

PLAN



CROSS SECTION

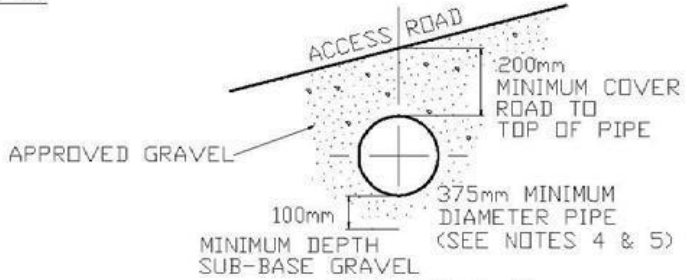


DIAGRAM A

NOTES:

1) HEADWALLS ARE TO BE PRECAST CONCRETE HEADWALLS.
2) ACCESS TO BE CONSTRUCTED IN ACCORDANCE WITH THIS PLAN, ANY VARIATION THEREFORE MUST BE APPROVED BY COUNCIL.
3) UNDER NO CIRCUMSTANCES MAY ACCESS INTRUDE BEYOND THE OUTER EDGE OF THE ROAD SHOULDER.
4) ANY VARIATION IN PIPE DIAMETER IS TO BE DETERMINED BY SITE INSPECTION.
5) PIPE LENGTH IS TO BE 4.9m MINIMUM.
6) DRIVEWAY TO BE SHAPED TO DIVERT WATER ALONG IT INTO TABLE DRAIN AND NOT ONTO THE THROUGH ROAD.
7) THIS PLAN SHOULD BE READ IN CONJUCTION WITH COUNCILS ADPOTED ACCESS TO PROPERTIES POLICY.

No.	DATE	APP	AMENDMENTS

SCALES: NOT TO SCALE

DATUM | SURVEY: Date: | DESIGN: DRAWN: GRAHAM GERMON CHECKED: ANDREW KEARNS

SHEET DETAILS

APPROVED: D. SCOTT MANAGER PLANNING DIVISION DATE:

STANDARD VEHICLE ACCESS RURAL

SHEET No. 1 | NUMBER OF SHEETS 1 | PLAN NUMBER

Contamination

Certain previous uses on a site can have effect on land that may make it unsuitable for residential development. These uses include: industrial operations and some agricultural uses. It is beneficial for an applicant to research the previous uses of the site to determine if any remediation works are required prior to any subdivision work.

Bushfire

Bushfire prone land is identified in Councils Bushfire Prone Land Mapping. If the development site is identified as bushfire prone, the subdivision application may be referred to the Rural Fire Service and, if necessary, additional conditions placed on any consent granted. Development in areas identified as bushfire prone should consult with the NSW Rural Fire Service document Planning for Bushfire Protection for additional controls that may be applicable to the development.

Flooding

Certain land in the Narromine Shire is identified as flood prone. While this hazard may not prohibit the subdivision, additional actions may need to be taken by the applicant to assist in further development of the land e.g. dwelling houses etc. Substantial subdivisions may require an individual flood study to be conducted on the site to determine the extent of flooding on the land. Subdivision of land is not encouraged in high hazard flood areas.

Refer to Chapter 6 of this plan for additional flood protection requirements.

Public Open Space

What is Public Open Space?

Public open space refers to land that has been reserved for the purpose of formal and informal sport and recreation, preservation of natural environments, provision of green space and/or urban storm water management that is available for public use.

Public open space is categorised as being either Neighbourhood (i.e. a local playground used by immediate residents of the area), District (i.e. a river reserve used by residents of the town or suburb of the area), or Regional (i.e. a football field used by local residents and people travelling from other towns or suburbs), depending on its intended use.

Reasons for Public Open Space

Studies have found that people who participate in sport a physical activity likely to have:

- **Improved health and well being,**
- **Improved mental health, and**
- **Enhanced social interactions.**

Amount of Open Space

Across NSW, a per person allocation of public open space is usually adopted. In the Narromine Shire, a figure of 30m² per person is recommended. This area can be utilised in different ways to cater for the demographic of the proposed catchment area. The catchment of a site is defined as being within a walkable distance of 500m from the site.

Open Space Design

The design of an open space area is important to ensure the optimum and effective use of the area which suits the needs of the residents. Three principles of open space design are adopted: Amenity, Accessibility and Useability.

Amenity

- **Protects and enhances the environmental, cultural and heritage values of an area.**
- **Builds on the special attributes of, and integrates into, an area**
- **Is pleasant and welcoming through embellishments and landscaping**
- **Is well maintained and actively managed**
- **Is safe and perceived to be safe**
- **Provides weather protection such as shade and shelter and areas to stop and rest such as seating**

Accessibility

- **Is distributed through an area providing equitable access to all residents**
- **Is easily accessible via the walking and cycling network**
- **Is connected where practicable with a broader open space network throughout the area**
- **Caters for the needs of people with a disability or those with difficulty with moveability**

Useability

- **Attempts to cater for multiple users**
- **Is of sufficient size to cater for its intended purpose**
- **Has access to facilities which encourage physical activity**
- **Is able to be practically and feasibly maintained**
- **Incorporates water sensitive urban design principles where practicable**

An example of effective public open space – Kurrajong Park, Narromine

Landscaping

Street Trees

Careful consideration should be given to the selection of landscaping and street trees, in particular, to the mature height of the tree, whether or not it is deciduous, or the typical root system. This should ensure there is no damage to underground or overhead services. A landscaping plan should be submitted with an application for subdivision to allow the proposed landscaping to be assessed.

Footpaths

Where footpaths exist in the vicinity of a development, it is preferred that the footpath is continued across and/or within the development. Footpaths should be of appropriate width to accommodate the anticipated pedestrian and bicycle traffic and of suitable construction to withstand this anticipated activity. The detail of the location, construction and dimensions of proposed footpaths should be included on the landscaping plan.

Street Lighting

Street lighting on public roads is to be designed in accordance with the Road Lighting Design Standards as nominated in AS1158 Lighting for Roads & Public Spaces. The proposed locations and types of street lighting is to be shown on the Landscaping Plan.

Locations

- **Street lighting is to be provided in Residential areas where the average lot size is less than 2,000m2.**
- **In Residential areas where the average lot size is greater than 2,000m2, but less than 5,000m2 lighting is only required to be located at intersections, crests and cul-de-sacs.**
- **No lighting will be provided on subdivisions with allotments greater than 5,000m2.**
- **Where any constructed footpath exists and lighting is warranted, it is to be provided to the standard defined for a residential area.**
- **Lighting in rural residential and rural areas will only be provided where specifically required by Council, generally at major intersections and the availability of low voltage power supply.**

Layout

- **Lighting installations generally follow the pattern of an 80W mercury vapour lantern at road intersections and spaced approximately every 100 metres (typically every second power pole) for 9 metre high mountings on overhead poles and 7 metre high mountings for underground power installations. Allowance is to be made in the spacing design to provide a light at or near to road geometrical changes (e.g. crests, sags and curves).**

- **Road intersections of status above a local residential street (e.g. collector roads) are to have a specific intersection lighting design.**
- **For roads with extensive tree planting, consideration is to be made to provide lights on suitable extension brackets over the roadway.**
- **Lighting along collector type urban roads with average daily traffic counts (ADT) >1500 vehicles per day, must have an 80W MV lantern on every power pole (maximum 45 metre spacing) or higher output lanterns at designated locations.**

Street trees in Narromine

Street Naming

In the naming and renaming of streets and roads, the following guidelines are to be observed.

Uniqueness

- **Name duplication within a local government area should be avoided.**
- **If possible duplication of names in proximity to adjacent local government areas should also be avoided.**
- **Roads crossing council boundaries should have a single and unique name.**

NOTE: The Geographical Names Board prefers to avoid the repetition of commonly used names.

Sources

Preferred sources for road names include:

- **Aboriginal names**
- **Local history**
- **Early explorers , pioneers, settlers and other eminent persons**
- **War/casualty lists**
- **Thematic names such as flora, fauna or ships**

NOTE: Names should be appropriate to the physical, historical or cultural character of the area concerned. The origin of each name should be clearly stated and subsequently recorded. The local Aboriginal Land Council should be consulted when choosing Aboriginal names unless Council already has an agreed list of appropriate names. The changing of long established street names is generally not preferred, except where necessary to avoid ambiguity or duplication.

Communication

- **Easily pronounced names should, as far as possible, be used.**
- **Long and clumsily constructed names and names composed of two or more words should be avoided**
- **When a choice is offered between two or more names for the same place, locality or feature, all sanctioned by local usage, the Council may adopt one of such names as is considered appropriate in accordance with the rules outlined above.**
- **The Geographical Names Board may approve a first or given name as part of a geographical name only where it is necessary to appropriately honour the person referred to or where its is necessary to avoid ambiguity.**
- **Names of persons should normally only be given after the person is deceased, but the Narromine Shire Council and Geographical Names Board, at their discretion, may approve a street name which honours a living person. Such a person's contribution to the local community should have been of outstanding benefit to the community. Ownership of the land is not sufficient reason for the application of the owner's name to a geographical feature.**

Form

i. **The possessive form should be avoided whenever possible without destroying the sound of the name or changing its descriptive application, eg, Howes Valley should be written without the apostrophe.**
ii. **The use of hyphens in connecting parts of the name should as far as possible be avoided.**
iii. **Names considered offensive or likely to give offence will not be approved.**

Road Type

- **Proposals for road names should include an appropriate road type suffix.**
- **Assistance and avoidance of confusion to both the motoring and pedestrian public should be a big consideration in this choice.**
- **When a type suffix with a geometric or geographic connotation is chosen ensure that it generally reflects the form of the road; e.g.Crescent – a crescent or half moon, rejoining the road from which it starts; Esplanade – open, level and often along the seaside or a river.**
- **For a cul-de-sac use Place, Close, Court or a type suffix of similar connotation.**

The following list of suitable road type suffixes is included for convenience. The list has been sourced from AS/NZS 1742.5 – 1986 and AS/NZS 4212 – 1994. In most instances the connotations are clear but where necessary a definition can be checked in a dictionary.

Alley	**Crescent**	**Promenade**
Arcade	**Drive**	**Quay**
Avenue	**Esplanade**	**Ridge**
Boulevard	**Fairway**	**Ridgeway**
Bypass	**Garden(s)**	**Road**
Chase	**Grove**	**Row**
Circle	**Lane**	**Square**
Circlet	**Mall**	**Street**
Circuit	**Mews**	**Terrace**
Circus	**Parade**	**Walk**
Close	**Parkway**	**Way**
Court	**Place**	
Cove	**Plaza**	

No prefix or additional suffix

The use of a compass point prefix or an additional suffix such as 'north' or 'extension' should be avoided.

Other Development

Child Care Centres

New child care centres should be located in areas where direct vehicular access is not proposed to a classified road or access within 90 metres of a classified road.

If a child care centre is proposed on a classified road or access to the centre is within 90 metres of a classified road, the Council and RTA must be satisfied that vehicular access will be undertaken in a safe manner and adequate traffic safety arrangements are provided.

Applications for child care centres should include through the statement of environmental effects, information such as details of the number of children, the age groups to be catered for, staffing level arrangements, operating hours, food provision (including food preparation areas), car parking provisions and other information as required.

Home Occupation, Home Business and Home Industries

Where development consent is required for home occupation, home business and home industries, such applications should address the following aspects:

1) **Type of activity;**
2) **Operating hours;**
3) **Number of employees (in particular employment of people who do not live in the dwelling);**
4) **Car parking (if members of the public visit the site);**
5) **Service vehicles if deliveries of goods are required;**
6) **Operating hours;**
7) **Type of equipment and noise mitigating measures if noisy machinery is required; and**
8) **Any other issue deemed relevant.**

Tomingley

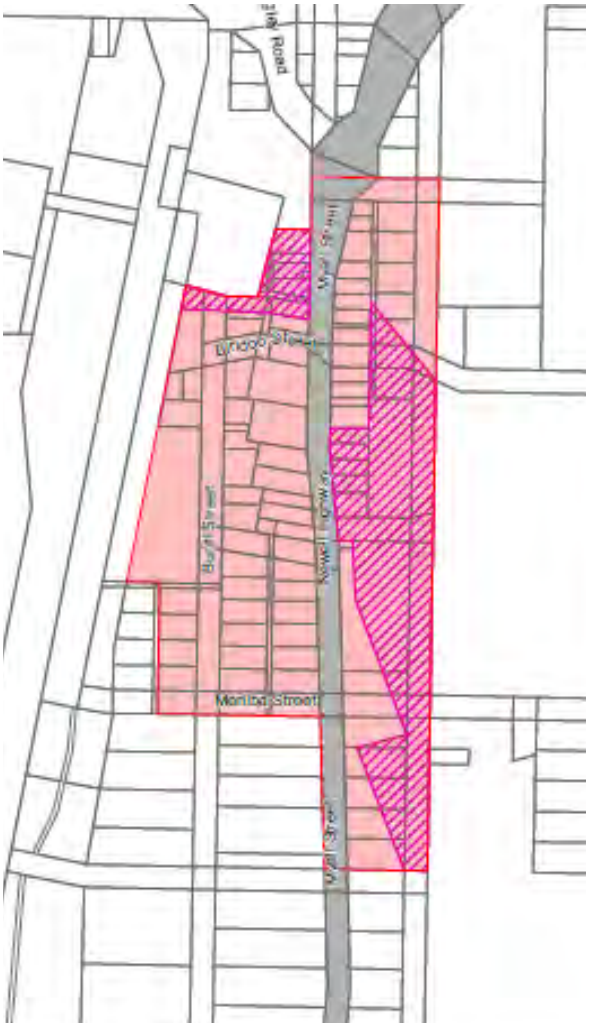
Development within the Tomingley village should be sympathetic to the rural character of the area, as well as encouraging growth within the Village.

The following setbacks apply to the RU5 area of Tomingley:

(a) 20 metres from the front boundary of any allotment that has frontage to a classified road;
(b) 9 metres from the front boundary to a non-classified road; and
(c) 5 metres from any side or rear boundary.

Mine Subsidence Area

Parts of Tomingley have been identified as susceptible to mine subsidence and contamination issues. Areas that are identified as holding former mining leases and tailing storage should be further investigated prior to consent being granted for development on the land. The subject area is identified below by the hatched area.



Tomingley Former Mining Area

Skypark

Skypark is a unique residential development within the boundaries of the Narromine Aerodrome which caters for housing and private hangars for aircraft on individual allotments. This concept is more widely known in the United States where houses and hangars are built next to existing air strips to take advantage of co-location and (in Narromine's case) provide cost-effective means of housing private aircraft next to a well-used Aerodrome, when compared to commercial lease fees for hangar space in the cities.

To protect the interests of people investing in the lifestyle choice at Skypark and to protect the operations at the Aerodrome, the following provisions apply to development in this area:

- **No building is to intrude on the height restrictions as shown on the 'Obstacle Limitation Surfaces' plan for the Narromine Aerodrome, dated 22/2/99 and held in the office of the Narromine Shire Council;**
- **Tree selection is also to consider the height limitations of the Aerodrome;**
- **Fences to be erected within Skypark require approval from Narromine Shire Council, apart from side and rear boundary fences which are constructed of light weight and non-reflective materials, do not extend higher than 1800mm above ground level and do not encroach on any boundaries;**
- **Industrial or commercial activities are not permitted on any of the allotments in Skypark;**
- **If hangers, sheds, garages or other outbuildings are proposed for the development, they are not permitted to be constructed prior to the erection of a dwelling on any allotment within Skypark. However, Council will permit the erection of such buildings where the building will be used for the purpose of storing building materials and the like, during construction of a dwelling and consent for the dwelling has been granted.**
- **No person is permitted to reside in any hangar at Skypark;**
- **Hangars are to be constructed of non-reflective materials (zincalume or similar material will not be accepted);**
- **Any development consent will include a notation that there may be noise disturbances at irregular hours associated with residing next to an operating Aerodrome. Applicants will be notified in the development consent that special clauses exist in the section 88B instrument which applies to the land at Skypark, advising that Council accepts no liability from any claim of compensation arising from noise disturbances at the Aerodrome;**
- **All dwellings within Skypark are to be constructed in accordance with AS 2021 - Acoustics – Aircraft Noise Intrusion – Building Siting and Construction. This standard provides noise insulation from outside a dwelling, in particular when noise disturbances outside the dwelling are at least 25dB(A). Accordingly, preferred external finishes are: brick veneer, double brick, rendered or similar material;**
- **Storage of fuel and chemicals on any allotment (other than small quantities of lawn mower fuel and domestic weed controllers when housed in a secure room or shed) are prohibited;**

- **Compost bins are only permitted at Skypark when appropriately covered to limit attraction by bird life. Open compost piles are not permitted. Likewise, worm farms are to be covered at all times; and**
- **Whenever development in Skypark requires the use of equipment such as concrete pumps or cranes, the Aerodrome Reporting Officer is to be informed to ensure the Obstacle Limitation Surface is not breached.**

Note: Allotments within Skypark have restrictions attached to the Title of the allotment. Variations to these covenants may not be supported by Council.

Narromine Skypark

Community Title Development

Community title development is a form of land subdivision that enables shared (common) property to be created within conventional Torrens title subdivisions. It is essentially a horizontal form strata title. It is usually created for a market niche within urban areas. Community title is permitted in all zones.

The common property may include infrastructure such as drainage reserves, local parks and the like. The common property is usually maintained through a community association funded by property owners. It is used to establish and maintain a level of local amenity, character or services for residents at a higher level than that usually provided by council. Ensure the scheme meets resident expectations as well as their ability and willingness to pay.

Community title development must be created in accordance with the *Community Land Development Act 1989*.

Developers should investigate the costs associated with undertaking such a development including potential costs to future land owners to ensure the viability of the proposal.

Any connections to Council infrastructure (roads, storm water, water and sewer) must be at the cost to the developer and developed to Council standards.

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